DATED 2 June 2004

THE GOVERNOR AND COMPANY OF
THE BANK OF ENGLAND

LTA NOMINEES LIMITED

THE ALL ENGLAND LAWN TENNIS GROUND PLC

LEASE
of
National Tennis Centre
The Bank of England Sports Ground
Roehampton

This lease is a new tenancy for the purposes of the
Landlord and Tenant (Covenants) Act 1995

FRESHFIELDS BRUCKHAUS DERINGER

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LEASE made the 2 day of June 2004

BETWEEN:

THE GOVERNOR AND COMPANY OF THE BANK OF ENGLAND of Threadneedle Street London EC2R 8AH (the ***Landlord***);

LTA NOMINEES LIMITED the registered office of which is at The Lawn Tennis Association Palliser Road West Kensington London W14 9EG (Company Registration Number 02445690) (the ***Tenant***); and

THE ALL ENGLAND LAWN TENNIS GROUND PLC the registered office of which is Hill House 1 Little New Street London EC4A 3TR (Company Registration Number 168491) (the ***Guarantor***).

WITNESSES as follows:

1. DEFINITIONS

In this Lease the following expressions have the respective specified meanings (subject to any particular interpretation required by clause 2):

Agreement for Lease means the agreement dated the 3rd day of July 2003 and made between the Landlord (1) LTA Ground Limited (2) and the Guarantor (3);

Associated Organisations means associations formally associated within the Lawn Tennis Association as notified in writing to the Landlord from time to time;

Authorised Guarantee Agreement means an authorised guarantee agreement with respect to the performance by an assignee of the tenant's covenants in this Lease such agreement to be in accordance with the provisions of section 16 of the Landlord and Tenant (Covenants) Act 1995 and subject thereto to be in such terms as the Landlord may reasonably require;

Buildings means the buildings and facilities from time to time on the Premises;

Enactment means every Act of Parliament directive and regulation now or hereafter to be enacted or made and all subordinate legislation whatsoever deriving validity therefrom;

Independent Surveyor means a building surveyor of not less than ten years standing who is experienced in the construction of property similar to the Premises;

Initial Period means the period of twenty five years from the date of this Lease;

Insured Risks means fire lightning explosion riot civil commotion strikes labour and political disturbances and malicious damage aircraft and aerial devices (other than hostile aircraft and devices) and articles accidentally dropped from them storm tempest flood bursting or overflowing of water tanks and pipes impact earthquake and accidental damage to underground water oil and gas pipes or electricity wires and cables subsidence ground slip and heave and such other risks or perils against the

occurrence of which the Tenant may from time to time in its reasonable discretion deem it desirable to insure subject to such exclusions and limitations as are from time to time imposed by the insurers and subject also to the exclusion of such of the risks specifically hereinbefore mentioned as the Tenant may in its reasonable discretion decide where insurance cover in respect of the risk in question is not for the time being available in the London insurance market on reasonable terms;

Office Premises means the office buildings (or any buildings replacing the same from time to time) the location of which is hatched red on Plan 3;

Permitted Use means use of the Premises during the Initial Period for a national tennis centre providing a high class training facility for professional and other tennis players with ancillary offices (including offices for use by the Lawn Tennis Association and Associated Organisations), accommodation, catering, medical, retail and recreational facilities and parking and other uses ancillary thereto and after the expiry of the Initial Period (as to the Office Premises) as offices and (as to the remainder of the Premises) for any sports related purpose or purposes;

Plans 1, 2 and 3 means the plans so numbered annexed hereto;

Planning Acts means the Town and Country Planning Act 1990 the Planning (Listed Buildings and Conservation Areas) Act 1990 the Planning (Hazardous Substances) Act 1990 the Planning (Consequential Provisions) Act 1990 and the Planning and Compensation Act 1991;

Premises means the premises described in Schedule 1;

Premium means the sum of £9,000,000 plus Value Added Tax (if applicable);

Public Authority means any Secretary of State and any government department public local regulatory fire or any other authority or institution having functions which extend to the Premises or their use and occupation and any court of law and the companies or authorities responsible for the supply of water gas and electricity or any of them and any of their duly authorised officers;

Redevelopment means the erection of new buildings or facilities to comprise the Premises;

Regulations means the regulations from time to time made by the Landlord relating to the security and management of the Retained Land and the Premises;

Rent means the rent of a peppercorn if demanded;

Retained Land means the premises described in Schedule 2;

Stipulated Rate means a yearly rate four per cent above the base rate of The Bank of England;

Tenant's Covenants means the covenants and conditions contained or referred to in clause 5;

Term means a term of 125 years commencing on the Term Commencement Date and expiring on 1 June 2129;

Term Commencement Date means the date hereof;

VAT means Value Added Tax as referred to in the Value Added Tax Act 1994 (or any tax of a similar nature which may be substituted for or levied in addition to it).

2. INTERPRETATION

2.1 Words importing the singular include the plural and vice versa and words importing one gender include both other genders.

2.2 Where a party comprises more than one person covenants and obligations of that party take effect as joint and several covenants and obligations.

2.3 A covenant by the Tenant not to do (or omit) any act or thing also operates as a covenant not knowingly to permit or suffer it to be done (or omitted).

2.4 Reference in this Lease to:

2.4.1 any clause sub-clause schedule or paragraph is a reference to the relevant clause sub-clause schedule or paragraph of this lease and clause and schedule headings shall not affect the construction of this lease;

2.4.2 any right of (or covenant to permit) the Landlord to enter the Premises shall also be construed (subject always to the proviso to clause 5.8) as entitling the Landlord to remain on the Premises for such time as is reasonable with or without equipment where reasonably necessary and permitting such right to be exercised by all persons authorised in writing by the Landlord (acting reasonably);

2.4.3 any consent licence or approval of the Landlord or words to similar effect mean a consent licence or other approval in writing signed by or on behalf of the Landlord;

2.4.4 the Premises (except in clause 5.13) shall be construed as extending where the context permits to any part of the Premises and the Retained Land to any part of the Retained Land;

2.4.5 a specific Enactment includes every statutory modification consolidation and re-enactment and statutory extension of it for the time being in force except in relation to the Town and Country Planning (Use Classes) Order 1987 which shall be interpreted exclusively by reference to the original provisions of Statutory Instrument 1987 No. 764 whether or not the same may at any time have been revoked or modified;

2.4.6 the last year of the Term includes the final year of the Term if it shall determine otherwise than by effluxion of time and references to the expiry of the Term include such other determination;

2.4.7 where the context permits rent or other sums being due from the Tenant to the Landlord mean that they are exclusive of any VAT.

2.4.8 the words ***including include*** and ***includes*** shall be deemed to be followed by the words ***without limitation***.

3. DEMISE AND RENTS

In consideration of the payment to the Landlord by the Tenant of the Premium (receipt of which the Landlord acknowledges) and of the rents hereby reserved and of the covenants on the part of the Tenant and the Guarantor hereinafter contained the Landlord **DEMISES** unto the Tenant **ALL THAT** the Premises **TOGETHER WITH** the easements and rights specified in Schedule 3 exercisable in common with the Landlord and all others with its authority or otherwise entitled thereto **EXCEPT AND RESERVED** to the Landlord and all other persons authorised by it from time to time during the Term or otherwise from time to time entitled thereto the easements and rights specified in Schedule 4;

TO HOLD the Premises unto the Tenant for the Term **SUBJECT** to all rights easements covenants stipulations and other matters affecting the same including the rights easements covenants stipulations and other matters contained or referred to in the documents referred to in the registers of Title Nos. 139884, 239100 and 396768;

YIELDING AND PAYING therefore yearly during the Term the Rent if demanded.

4. REDEVELOPMENT

Subject to the Landlord's prior written consent (which shall not be unreasonably withheld or delayed after the end of the Initial Period) the Tenant may carry out a Redevelopment on not more than three occasions during the Term and if any dispute arises as to whether or not works proposed (whether or not together with other works) amount to a Redevelopment the Landlord shall not be obliged to approve such works until such dispute has been finally resolved and (subject to the foregoing requirements of this clause) during the Initial Period the Tenant will not be permitted to increase the height and width of those buildings (the ***Existing Structures***) erected on the Premises pursuant to the Agreement for Lease nor replace the Existing Structures with new buildings and structures which are higher or wider than the Existing Structures.

5. TENANT'S COVENANTS

The Tenant covenants with the Landlord:

5.1 Rent

To pay the Rent reserved by this lease if demanded.

5.2 VAT

Wherever the Tenant is required to pay any amount to the Landlord hereunder by way of reimbursement or indemnity to pay to the Landlord in addition an amount

equivalent to any VAT incurred by the Landlord save to the extent that the Landlord obtains credit for such VAT incurred by the Landlord whether pursuant to sections 24 25 and 26 Value Added Tax Act 1994 or any regulations made thereunder or otherwise.

5.3 **Outgoings**

5.3.1 To pay and indemnify the Landlord against all rates taxes charges and other outgoings whatsoever now or hereafter assessed charged or imposed upon the Premises or upon their owner or occupier excluding (without prejudice to clause 5.2) any tax payable by the Landlord as a direct result of any actual or deemed dealing with the reversion to this lease or of the Landlord's receipt of income from the Premises.

5.3.2 To pay to the Landlord on demand a fair and proper proportion (to be determined by the Landlord) of any costs of maintenance repair and renewal of any pipe wire cable or other conduit or any other structure or thing which is situated off the Premises but which serves the Premises in common with the Retained Land which is owned by the Landlord from time to time or for which the Landlord is liable.

5.4 **Compliance with Enactments**

To comply with the lawful requirements of all Enactments and of every Public Authority (including the due and proper execution of any works) in respect of the Premises and their use and occupation and any work being carried out to them (whether the requirements are imposed upon the owner lessee or occupier) and not knowingly to do or omit anything by which the Landlord may become liable to make any payment or do anything under any Enactment or requirement of a Public Authority.

5.5 **Notices**

As soon as reasonably practicable after receipt of the same to give to the Landlord a copy of any notice permission direction requisition order or proposal made by any Public Authority in respect of the Premises and without delay (subject to any right of appeal to which the Tenant is entitled) to comply in all respects at the Tenant's cost with the provisions thereof.

5.6 **Repair**

Well and substantially to repair the Buildings and other structures erected on the Premises and maintain and keep them in good and substantial repair and condition.

5.7 **Decoration and general condition**

To keep the Buildings and other structures erected on the Premises maintained to a proper standard of decorative order and finish and properly cleansed and tidy and all glass properly clean at all times and to keep all landscaped or garden areas neat and tidy and properly cultivated.

5.8 **To permit entry**

To permit the Landlord at reasonable times on at least seven days prior written notice (except in an emergency) to enter the Premises in order to:

5.8.1 examine their state of repair;

5.8.2 ascertain that the covenants and conditions of this lease have been observed;

5.8.3 carry out any works of necessary repair to the Retained Land belonging to the Landlord from time to time in circumstances only where it is not reasonably practicable to do so by a means which would not involve effecting such entry;

5.8.4 for any other purpose connected with the reversionary interest of the Landlord in the Premises;

PROVIDED ALWAYS THAT the Landlord shall not exercise any right to enter the Premises for the purposes described in this clause 5.8 except in the company of a representative of the Tenant or so as to interfere unreasonably with the use of the Premises for the purpose of the business carried on by the Tenant or any undertenant or other occupier thereof and the Landlord shall cause as little inconvenience or disturbance as reasonably practicable and shall promptly at its own cost make good all damage to the Premises and any contents thereof caused by such entry.

5.9 **Compliance with notices relating to repair or condition**

5.9.1 To comply within a reasonable time with any written notice requiring the Tenant to remedy any breach of its covenants contained in this Lease.

5.9.2 If the Tenant shall not within a reasonable time comply with any such written notice to permit the Landlord and any person authorised by the Landlord to enter the Premises to remedy the breach at the Tenant's cost.

5.9.3 To pay to the Landlord within 14 days of demand all the costs and expenses properly incurred by the Landlord under the provisions of this sub-clause.

5.10 **Encroachments**

5.10.1 To use all reasonable endeavours to preserve all rights of light and other easements belonging to the Premises and not to give any acknowledgement that they are enjoyed by consent.

5.10.2 Not knowingly to do or omit anything which might subject the Premises to the creation of any new easement and to give notice to the Landlord as soon as reasonably practicable after becoming aware of any encroachment which might have that effect and at the cost of the Tenant to do such things as may be necessary for preventing any such new encroachment or easement being made or acquired and if the Tenant shall fail to do all such things as aforesaid the Landlord or its agents and workmen may enter the Premises to do the same and the proper costs and expenses so incurred shall be repaid by the Tenant to the Landlord within fourteen days of demand and if not so

paid shall be recoverable by the Landlord from the Tenant as liquidated damages or as rent in arrear.

5.11 **Alterations**

5.11.1 Not within the Initial Period to demolish the Buildings nor to erect any new building or buildings.

5.11.2 Not within the Initial Period to alter materially the external appearance of the Buildings or to unite or annex or suffer to be united or annexed the Premises to any adjoining or neighbouring property and not to extend or increase the height or projection of the Buildings.

5.11.3 Without prejudice to clauses 5.11.1 and 5.11.2, not without the consent of the Landlord (which shall not be unreasonably withheld or delayed) but subject to compliance with the other provisions of this clause 5.11 to make or permit or suffer to be made any external additions or external structural alterations to the Premises.

5.11.4 In the case of all alterations to the Premises (other than in the case of Redevelopment):

(a) the Tenant shall with the Tenant's application to the Landlord for consent provide the Landlord with full details of all works to be carried out including plans and specifications and copies of all consents (other than the Landlord's consent) required for such works;

(b) Landlord's consent may be given subject to such reasonable conditions as the Landlord shall require;

(c) during the Initial Period such works shall be carried out within the existing shell of the Building;

(d) when making any application for Landlord's consent for any works under this clause 5.11 the Tenant shall with such application advise the Landlord in writing by reference to clause 4 whether or not in the Tenant's opinion such works taken alone or together with other works amount to (or might amount to if commenced within a given period) a Redevelopment and in the event of disagreement between the parties hereto as to whether or not works carried out or proposed by the Tenant taken alone or together with other works amount to a Redevelopment such dispute shall be referred to determination by an Independent Surveyor experienced in the construction and refurbishment of buildings of a similar size and nature to the Buildings appointed by agreement between the Landlord and the Tenant or failing agreement on the application of either party by the President of the Royal Institution of Chartered Surveyors and who shall act as an expert and whose decision as to whether or not the works amount to a Redevelopment shall (save in the case of manifest error) be final and binding on the parties hereto.

5.11.5 To enter into such covenants as the Landlord may reasonably require regarding the execution of any works to which the Landlord consents under this clause and the reinstatement of the Premises at the end or earlier termination of the Term.

5.11.6 Within a reasonable time (being not more than two months) following the completion of any such alterations as may be permitted by the Landlord pursuant to the provisions of this clause to submit to the Landlord as-built plans and specifications thereof.

5.12 **Use**

Not to use the Premises:

5.12.1 for any purpose (and not to do anything in or to the Premises) which may be or become or cause an actionable nuisance obstruction or damage to any person or property; or

5.12.2 for any dangerous noxious illegal or immoral trade business or activity; or

5.12.3 for residential purposes (except in relation to the use of the accommodation by players and coaches in conjunction with the training facilities); or

5.12.4 (without prejudice to the preceding paragraphs of this sub-clause) except for the Permitted Use.

5.13 **Alienation**

5.13.1 Not to charge part only of the Premises.

5.13.2 Not to assign the Premises or this Lease in any part less than the whole.

5.13.3 Not to assign the whole of the Premises:

(a) (if the Landlord shall reasonably so require) without obtaining from a guarantor or guarantors reasonably acceptable to the Landlord a full guarantee of the covenants of the proposed assignee by deed in such form as shall be reasonably required by the Landlord; nor

(b) if in the reasonable opinion of the Landlord the proposed assignee (taking into account any covenant to be given by a guarantor or guarantors for such assignee) is not of sufficient financial standing to enable it to pay the rents reserved from time to time by this Lease and otherwise perform the covenants on the part of the Tenant contained in this Lease.

5.13.4 Not to assign or transfer the whole of the Premises otherwise than in accordance with nor without in each and every such case first complying with the foregoing provisions and subject to having complied with them and subject to clause 5.13.5 not without obtaining the prior written consent of the Landlord which consent shall not be unreasonably withheld.

5.13.5 The Landlord and the Tenant agree that for the purposes of section 19(1A) of the Landlord and Tenant Act 1927 the Landlord may give its consent to an assignment subject to conditions that:

(a) the Tenant by deed enters into an Authorised Guarantee Agreement;

(b) any guarantor whose guarantee is subsisting immediately before the assignment enters into a guarantee with the Landlord in such form as the Landlord may reasonably require of the Tenant's obligations under the Authorised Guarantee Agreement;

(c) the assignment shall not take place until any requisite consent of any superior landlord or mortgagee has been obtained and any lawfully imposed conditions of such consent satisfied;

(d) the Tenant obtains from the assignee a covenant by deed with the Landlord to pay the Rent and to observe and perform all the covenants on the part of the Tenant and the conditions contained in this Lease from the date of the deed of transfer or deed of assignment of the Premises until such time as the assignee shall be released pursuant to the Landlord and Tenant (Covenants) Act 1995.

5.13.6 Not to underlet the whole or any part or parts of the Premises except with the prior written consent of the Landlord such consent not to be unreasonably withheld or delayed.

5.13.7 Not share occupation of the Premises or any part thereof other than in a manner permitted by clause 5.13.8 or with Associated Organisations.

5.13.8 Subject to the Tenant giving not less than 14 days' prior written notice to the Landlord of the identity of the company and of the part of the Premises affected (if less than the whole) the Tenant and any permitted undertenant may share occupation of the Premises or the relevant part thereof with a company within the same group of companies (within the meaning of section 42 of the Landlord and Tenant Act 1954) as the Tenant or permitted undertenant:

(a) for so long only as such company shall remain within such group;

(b) on terms whereby such company is not given exclusive occupation of the Premises or any part thereof and no relationship of landlord and tenant is created; and

(c) provided that any rent or other payment received by the Landlord from any such company shall be deemed to have been paid by such company as agent for the Tenant.

5.13.9 Upon every application for consent required by this clause 5.13 to disclose to the Landlord such information including as to the terms proposed as the Landlord may reasonably require.

5.14 **Registration**

Within five working days after any transfer, underletting or other disposition or devolution of this Lease or the commencement or termination of any sharing of the Premises or part thereof to give notice to the Landlord and to pay to the Landlord a fair and reasonable fee for each such registration.

5.15 **Tenancy Information**

During intervals not more frequently than annually to provide the Landlord on demand a schedule of every tenancy or other occupation of the Premises to include the name of the tenant or occupier and such other information as the Landlord shall reasonably require.

5.16 **Payment of cost of notices consents etc.**

To pay on demand all proper expenses (including counsels' solicitors' surveyors' and bailiffs' fees) incurred by the Landlord in and incidental to:

5.16.1 the preparation and service of a notice under section 146 Law of Property Act 1925 or in any proceedings under section 146 or 147 of that Act notwithstanding that forfeiture is avoided otherwise than by relief granted by the court;

5.16.2 every step taken during or after the expiry of the Term in connection with the service or proposed service of schedules of dilapidations within three months of the expiration of the Term and relating only to dilapidations accruing during the Term; and

5.16.3 every application for consent licence or approval under this Lease even if the application is withdrawn or properly refused.

5.17 **Planning Acts and compensation**

5.17.1 Without prejudice to clause 5.4 to comply with the provisions and requirements of the Planning Acts relating to or affecting:

(a) the Premises;

(b) any operations works acts or things carried out executed done or omitted on the Premises;

(c) the use of the Premises.

5.17.2 As often as occasion requires during the Term at the Tenant's expense to obtain and if appropriate renew all planning permissions (and serve all notices) required under the Planning Acts in respect of the Premises whether for the carrying out by the Tenant of any operations or the institution or continuance by the Tenant of any use of the Premises or any part thereof or otherwise.

5.17.3 Unless the Landlord otherwise directs to complete before the expiry of the Term all works on the Premises required as a condition of any planning permission implemented by the Tenant.

5.17.4 If the Tenant receives or is entitled to receive any statutory compensation under any Enactment in relation to its interest in the Premises the Tenant shall on any determination of its interest prior to the expiry of this Lease by effluxion of time forthwith make such provision as is just and equitable for the Landlord to receive its due benefit from such compensation.

5.17.5

(a) not to apply for any planning permission authorising a change of use of the Premises during the Initial Period;

(b) not to apply for any planning permission authorising a change of use of the Premises after the Initial Period unless the Landlord shall have consented to such a change of use (such consent not to be unreasonably withheld) or unless consent is not required due to the fact that the proposed use falls within the Permitted Use.

5.17.6 If and when called upon so to do to produce to the Landlord all such plans documents and other evidence as the Landlord may reasonably require in order to be satisfied that the provisions of this covenant have been complied with in all respects.

5.18 **Indemnity**

To indemnify the Landlord against all expenses proceedings costs claims damages demands and any other liability or consequence arising out or in respect of any breach of any of the Tenant's obligations under this Lease or of any act omission or negligence of the Tenant or any person at the Premises expressly or impliedly with the Tenant's authority.

5.19 **Defective premises**

To give notice to the Landlord of any defect in the Premises which might give rise to:

5.19.1 an obligation on the Landlord to do or refrain from doing anything in relation to the Premises; or

5.19.2 any duty of care or the need to discharge such duty imposed by the Defective Premises Act 1972 or otherwise;

and at all times to display and maintain all notices which may from time to time be required to be displayed at the Premises in relation to their state of repair and condition.

5.20 **Yield up**

At the expiry of the Term to remove all chattels and (to the extent the Landlord may reasonably require) tenant's fixtures and quietly to yield up the Premises in the state of

repair condition decorative order and layout required by this Lease and any licences or consents issued in pursuance of it and to make good any damage so caused in a proper and workmanlike manner to the Landlord's reasonable satisfaction and to return all keys to the Landlord.

5.21 **Covenants**

To comply with all covenants stipulations and other matters affecting the Premises and not to interfere with any rights easements or other matters affecting the Premises including in such case but not limited to those contained or referred to in the documents and deeds referred to in the registers of title number 139884, 239100 and 396768 (so far only as they affect the Premises).

5.22 **Insurance and Reinstatement**

5.22.1 To insure the Premises with an insurance company of repute and to ensure that the Landlord's interest is noted on the policy of insurance and keep them insured in an amount equal to the full cost of reinstatement or replacement including the cost of site clearance demolition and professional fees and VAT against damage or destruction by the Insured Risks.

5.22.2 To produce to the Landlord on demand (but not more often than once a year) a complete copy of the policy of insurance together with evidence that the policy of insurance has been effected in accordance with this clause and evidence that the current year's premium has been paid.

5.22.3 In the event of loss or damage by any of the Insured Risks:

(a) diligently to take such steps as may be requisite and proper to obtain any necessary permits and consents under any regulations or enactments for the time being in force to enable the Premises to be repaired rebuilt or reinstated;

(b) as soon as reasonably practicable after obtaining such permits and consents to rebuild and repair or otherwise reinstate the Premises to their former state in a good and substantial manner in accordance with all statutory requirements then in force and to the reasonable satisfaction in all respects of the Landlord causing all moneys received from the insurer by virtue of such insurance to be laid out for such purpose and if the moneys so received shall be insufficient for the purpose then to make good the deficiency out of the Tenant's own moneys.

5.22.4 To take out adequate insurance with an insurance company or underwriters of repute approved by the Landlord (such approval not to be unreasonably withheld) against third party and public liability unless such insurance is not available in the London insurance market.

5.22.5 The Tenant shall not do or omit to do anything which could cause any policy of insurance covering the Premises to become wholly or partly void or voidable.

5.23 **Illegality and Nuisance**

Not to use the Premises or any part thereof for any auction or any illegal or immoral purposes nor for any noxious offensive or dangerous trade or business purposes or for any public political or religious meetings and not to do on the Premises anything which is a nuisance or causes damage to the Landlord or to the owners tenants or occupiers of the Retained Land and (without prejudice to the Tenant's obligations hereunder) to pay to the Landlord on demand all reasonable costs charges and expenses which may properly be incurred by the Landlord in abating a nuisance on or arising from the Premises and executing all such works as may be necessary for abating such a nuisance.

5.24 **Non-objection to building on other land**

Not to object under the provisions of the London Building Acts 1939-1982 and the Building Act 1984 or the London County Council (General Powers) Act 1954 or any other statutory enactment for the time being in force to the erection of a building or buildings of any height on any other lands in the ownership or control of the Landlord notwithstanding the loss thereby of light or air to the Premises.

5.25 **Regulations**

To observe and conform to and procure that all persons resorting to the Premises observe and conform to the Regulations.

6. LANDLORD'S COVENANTS

The Landlord covenants with the Tenant that the Tenant may peaceably hold and enjoy the Premises without any lawful interruption by the Landlord or any person rightfully claiming through under or in trust for it.

7. PROVISOS AGREEMENTS AND DECLARATIONS

Provided always and it is hereby agreed and declared that:

7.1 **Forfeiture and re-entry**

Without prejudice to any other remedies and powers contained in this Lease or otherwise available to the Landlord if any of the Tenant's covenants in this Lease are not performed or observed in the manner and at the times herein specified the Landlord may at any time thereafter (and notwithstanding the waiver of any previous right of re-entry) forfeit this Lease by re-entry whereupon this Lease shall absolutely determine but without prejudice to either party's right of action in respect of any antecedent breach of the other party's covenants in this Lease.

7.2 **Service of notices**

In addition to any other mode of service any notice to be served under this Lease shall be validly served if served in accordance with section 196 Law of Property Act 1925 as amended by the Recorded Delivery Service Act 1962.

7.3 **No warranty as to use**

Nothing contained in this Lease shall constitute or be deemed to constitute a warranty by the Landlord that the Premises are authorised under the Planning Acts to be used or are otherwise fit for any specific purpose.

7.4 **Construction (Design and Management) Regulations 1994**

7.4.1 In this clause:

(A) the expression ***Regulations*** means the Construction (Design and Management) Regulation 1994 and any expressions appearing in this clause which are defined in the Regulations have the same meaning: and

(B) the expression ***relevant work*** means any construction work which is undertaken by the Tenant or by a person claiming under it pursuant to an obligation or a right (whether or not requiring the Landlord's consent) under this Lease and for the purposes of the Regulations the Tenant irrevocably acknowledges that it, and not the Landlord, arranges the design, carrying out and construction of relevant work.

7.4.2 The Tenant irrevocably acknowledges that the Landlord will not be the client in respect of any relevant work.

7.4.3 Before any relevant work is commenced in respect of which the Tenant shall act as agent on behalf of the Landlord the Tenant shall make a declaration in accordance with Regulation 4(4) and shall forthwith serve it on the Health and Safety Executive and a copy of it on the Landlord.

7.4.4 Where appropriate the Tenant shall comply with its obligations as client in respect of any relevant work.

7.4.5 The Tenant shall promptly provide to the Landlord a full and complete copy of the health and safety file for all relevant work and (upon the expiry or sooner determination of this lease) the original health and safety file.

7.4.6 The provisions of this clause shall apply notwithstanding that any consent issued by the Landlord in respect of any relevant work does not refer to the said provisions or to the Regulations.

7.5 **Restrictions on other property**

Nothing herein contained or implied shall impose or be deemed to impose any restriction on the use of any land or buildings not comprised in this Lease or give the Tenant the benefit of or the right to enforce or have enforced or to prevent the release or modification of any covenant agreement or condition entered into by any purchaser from or any lessee tenant or occupier of the Landlord in respect of property not comprised in this Lease or to prevent or restrict in any way the development of any land not comprised in this Lease.

7.6 Building on other property

The Landlord shall have power at all times without obtaining any consent from or paying any compensation to the Tenant to deal as the Landlord may think fit with any property not comprised in this Lease and to erect or suffer to be erected on any such property any buildings whatsoever whether such buildings shall or shall not affect or diminish the light or air which may now or at any time during the Term be enjoyed by the Tenant or any tenants or occupiers of the Premises or any part thereof.

7.7 Effect of waiver

Each of the Tenant's Covenants shall remain in full force both in law and in equity notwithstanding that the Landlord shall have waived or released temporarily any such covenant or waived or released temporarily or permanently revocably or irrevocably a similar covenant or similar covenants affecting the Retained Land.

8. GUARANTEE

8.1 Covenant and indemnity by Guarantor

The Guarantor covenants with the Landlord as a primary obligation that the Tenant or the Guarantor shall at all times during the Term (including any continuation or renewal of this Lease) duly perform and observe all the covenants on the part of the Tenant contained in this Lease including the payment of the Rent and all other sums payable under this Lease in the manner and at the times specified in this Lease.

8.2 Guarantor's liability

The Guarantor further covenants with the Landlord as a primary obligation that the Guarantor shall be liable (whether before or after any disclaimer by a liquidator or trustee in bankruptcy) for the fulfilment of all the obligations of the Tenant under this Lease and agrees that the Landlord in the enforcement of its rights under this Lease may proceed against the Guarantor as if the Guarantor was named as the Tenant in this Lease.

8.3 Waiver by Guarantor

The Guarantor waives any right to require the Landlord to proceed against the Tenant or to pursue any other remedy whatsoever which may be available to the Landlord before proceeding against the Guarantor.

8.4 Postponement of claims by Guarantor against Tenant

The Guarantor further covenants with the Landlord that the Guarantor shall:

8.4.1 not claim in any liquidation bankruptcy composition or arrangement of the Tenant in competition with the Landlord;

8.4.2 hold for the benefit of the Landlord all security and rights the Guarantor may have over assets of the Tenant whilst any liabilities of the Tenant or the Guarantor to the Landlord remain outstanding and not exercise any right or remedy in respect of any amount paid or any liability incurred by the Guarantor in performing or

discharging its obligations contained in this clause 8 or claim any contribution from any other guarantor.

8.5 **Postponement of participation by Guarantor in security**

The Guarantor shall not be entitled to participate in any security held by the Landlord in respect of the Tenant's obligations to the Landlord under this Lease or to stand in the place of the Landlord in respect of any such security until all the obligations of the Tenant or the Guarantor to the Landlord under this Lease have been performed or discharged.

8.6 **No release of Guarantor**

None of the following or any combination of them shall release determine discharge or in any way lessen or affect the liability of the Guarantor as principal obligor under this Lease or otherwise prejudice or affect the right of the Landlord to recover from the Guarantor to the full extent of this guarantee:

8.6.1 any neglect delay or forbearance of the Landlord in endeavouring to obtain payment of the Rent or the amounts required to be paid by the Tenant or in enforcing the performance or observance of any of the obligations of the Tenant under this Lease;

8.6.2 any refusal by the Landlord to accept rent tendered by or on behalf of the Tenant at a time when the Landlord was entitled (or would after the service of a notice under Section 146 of the Law of Property Act 1925 have been entitled) to re-enter the Premises;

8.6.3 any extension of time given by the Landlord to the Tenant;

8.6.4 any variation of the terms of this Lease or the transfer of the Landlord's reversion or the assignment of this Lease;

8.6.5 any change in the constitution structure or powers of either the Tenant the Guarantor or the Landlord or the liquidation administration or bankruptcy (as the case may be) of either the Tenant or the Guarantor;

8.6.6 any legal limitation or any immunity disability or incapacity of the Tenant (whether or not known to the Landlord) or the fact that any dealings with the Landlord by the Tenant may be outside or in excess of the powers of the Tenant;

8.6.7 any other act omission matter or thing whatsoever as a result of which but for this provision the Guarantor would be exonerated either wholly or partly (other than a release executed and delivered as a deed by the Landlord).

8.7 **Disclaimer or forfeiture of lease**

The Guarantor further covenants with the Landlord that:

8.7.1 if a liquidator or trustee in bankruptcy shall disclaim or surrender this Lease; or

8.7.2 if this Lease shall be forfeited; or

8.7.3 if the Tenant shall cease to exist;

the Guarantor shall if the Landlord by notice in writing given to the Guarantor within six months after such disclaimer or other event so requires accept from and execute and deliver to the Landlord a counterpart of a new lease of the Premises for a term commencing on the date of the disclaimer or other event and continuing for the residue then remaining unexpired of the Term such new lease to be at the cost of the Guarantor and to be at the same Rents and subject to the same covenants and provisions as are contained in this Lease.

8.8 **Guarantor to pay sum equal to rents**

If the Landlord shall not require the Guarantor to take a new lease pursuant to clause 8.7 the Guarantor shall nevertheless upon demand pay to the Landlord a sum equal to the Rent and other sums that would have been payable under this Lease but for the disclaimer or other event in respect of the period from and including the date of such disclaimer or other event until the expiration of six months from such date or until the Landlord shall have granted a lease of the Premises to a third party (whichever shall occur first).

8.9 **Benefit of guarantee**

This guarantee shall enure for the benefit of the successors and assigns of the Landlord under this Lease without the necessity for any assignment.

9. NEW TENANCY

This Lease is a new tenancy for the purposes of the Landlord and Tenant (Covenants) Act 1995.

10. CONTRACTS (RIGHTS OF THIRD PARTIES) ACT 1999

A person who is not a party to this Lease shall have no right under the Contract (Rights of Third Parties) Act 1999 to enforce any term of this Lease. This clause does not affect any right or remedy of any person which exists or is available otherwise than pursuant to that Act.

11. JURISDICTION

This lease shall be governed by and construed in accordance with English law.

IN WITNESS whereof this Deed has been executed by the parties hereto and is intended to be and is hereby delivered on the date first above written.

SCHEDULE 1

(The Premises)

ALL THOSE Premises forming part of the title numbers 139884, 239100 and 396768 forming part of the Bank of England Sports Ground at Roehampton London SW15 5XZ as the same are shown edged red on Plan 1 together with any buildings now or hereafter erected thereon and all additions alterations and improvements thereto which may be carried out during the Term.

SCHEDULE 2

(The Retained Land)

The land and all buildings as may from time to time be erected thereon known as The Bank of England Sports Ground Roehampton as the same is shown for identification only edged blue on Plan 2 the Landlord's freehold title to which (together with the Premises) is registered at H.M. Land Registry with title numbers 139884 239100 and 396768.

SCHEDULE 3

(Easements and Rights Granted)

1. The right to install and use a new surface water drain (and to renew and replace such drain from time to time) under that part of the Retained Land shown hatched brown on Plan 2 for the passage of surface water from the Premises subject to the Tenant repairing, maintaining, replacing, renewing and cleaning such surface water drain.

2. The right to enter the Retained Land and break up the surface of the land hatched brown on Plan 2 for the purpose of repairing, maintaining, replacing, renewing and cleaning such surface water drain, subject to the Tenant:

2.1 causing as little inconvenience as practicable to the Landlord and its occupiers in the exercise of the rights;

2.2 except in case of emergency, carrying out any works required in accordance with a programme of works, plans and specifications previously approved by the Landlord, such approval not to be unreasonably withheld or delayed;

2.3 making good as soon as reasonably practicable and at the Tenant's cost all damage caused to the Retained Land to the reasonable satisfaction of the Landlord;

2.4 permitting the Landlord to accompany those exercising the rights.

3. The right of way in common with the Landlord and any other occupiers of the Retained Land and those authorised by them with or without vehicles in emergency and for maintenance over and along the access ways shown coloured yellow on Plan 1 for the purpose only of access to plant rooms maintenance and in emergencies and for occasional deliveries and on foot only for pedestrian access.

4. All rights of support protection and shelter as are now enjoyed by the Premises over or in respect of the Retained Land.

5. The right to erect scaffolding on the accessway shown coloured yellow and orange on Plan 1 for the purpose of repairing maintaining renewing or replacing buildings on the Premises notwithstanding temporary interference with the right of way specified in paragraph 4 of Schedule 4 and subject to the Tenant keeping such interference to a minimum.

SCHEDULE 4

(Exceptions and Reservations)

1. All rights of light air support protection and shelter and all other rights and easements which now belong to or are enjoyed by the Retained Land over or in respect of the Premises.

2. The right at reasonable times on reasonable prior notice (except in an emergency) to enter upon the Premises as often as may be necessary for all the purposes for which the Tenant covenants in this Lease to permit entry.

3. Unless and to the extent diverted from the Premises the full and free right to the passage of services from and to the Retained Land through any pipes drains cables and other conducting media as now exist on in or under the Premises together with the right to connect into such pipes drains cables and other conducting media and the right to enter the Premises and break up the surface of the land for the purpose of repairing maintaining replacing renewing and cleaning and connecting into such media subject to the Landlord:

3.1 causing as little inconvenience as practicable to the Tenant in the exercise of these rights;

3.2 except in case of emergency, carrying out any works required in accordance with a programme of works, plans and specifications previously approved by the Tenant, such approval not to be unreasonably withheld or delayed;

3.3 making good as soon as reasonably practicable and at the Landlord's cost all damage caused to the Premises to the reasonable satisfaction of the Tenant;

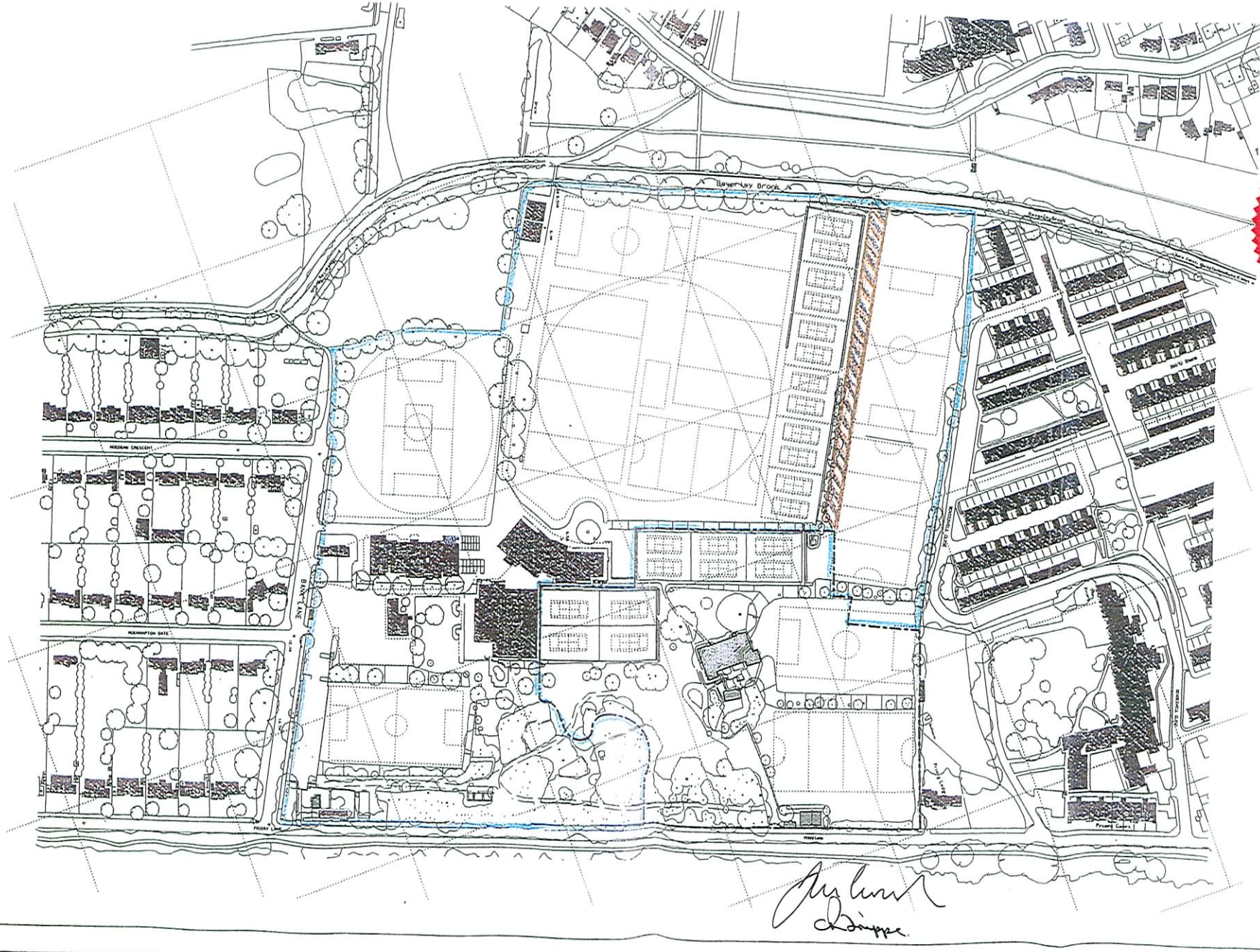
3.4 permitting the Tenant to accompany those exercising the rights.

4. The right of way in common with the Tenant and any other occupiers of the Premises and those authorised by them with or without emergency vehicles over and



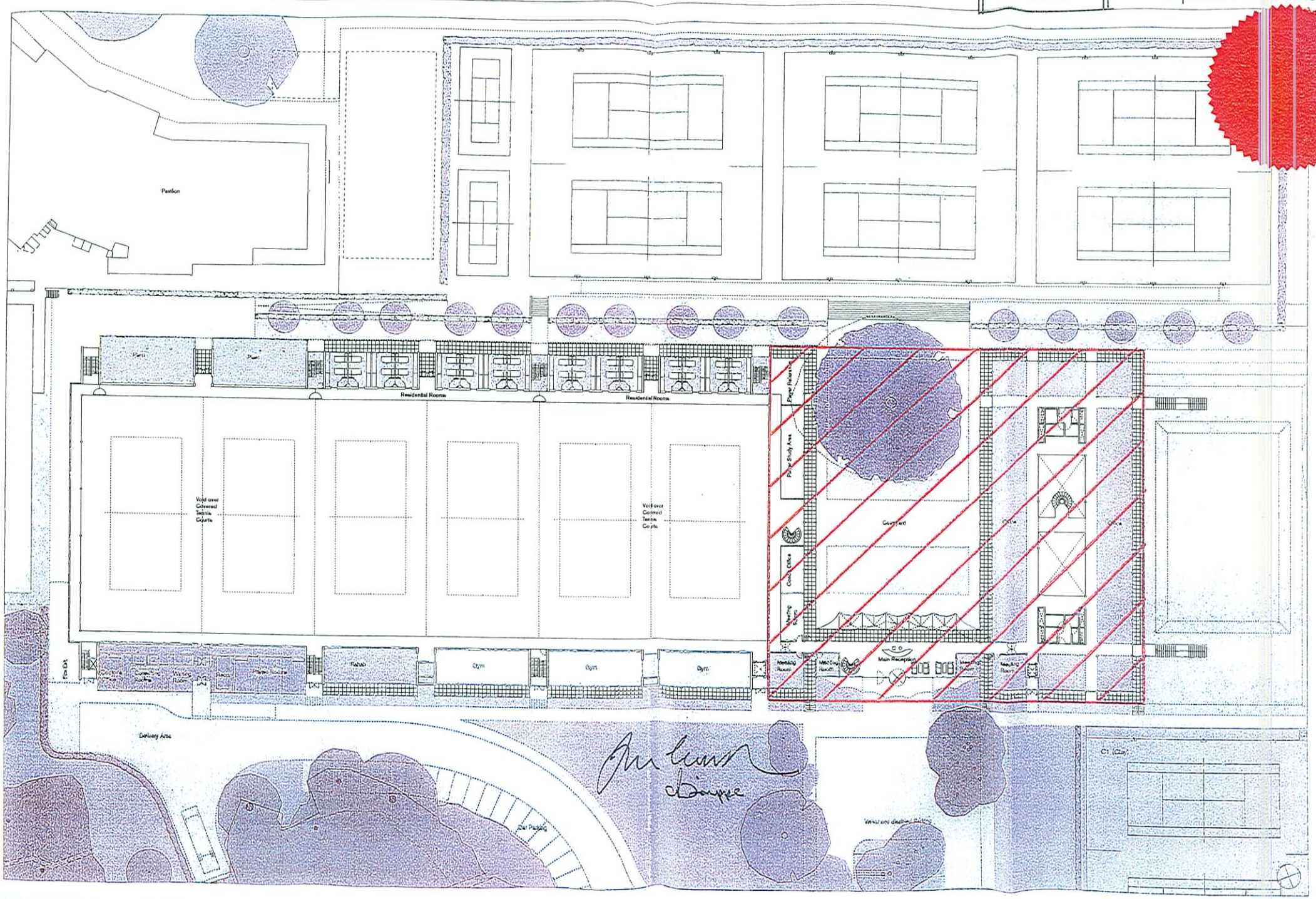
Project The Lawn Tennis Association

PLAN 2

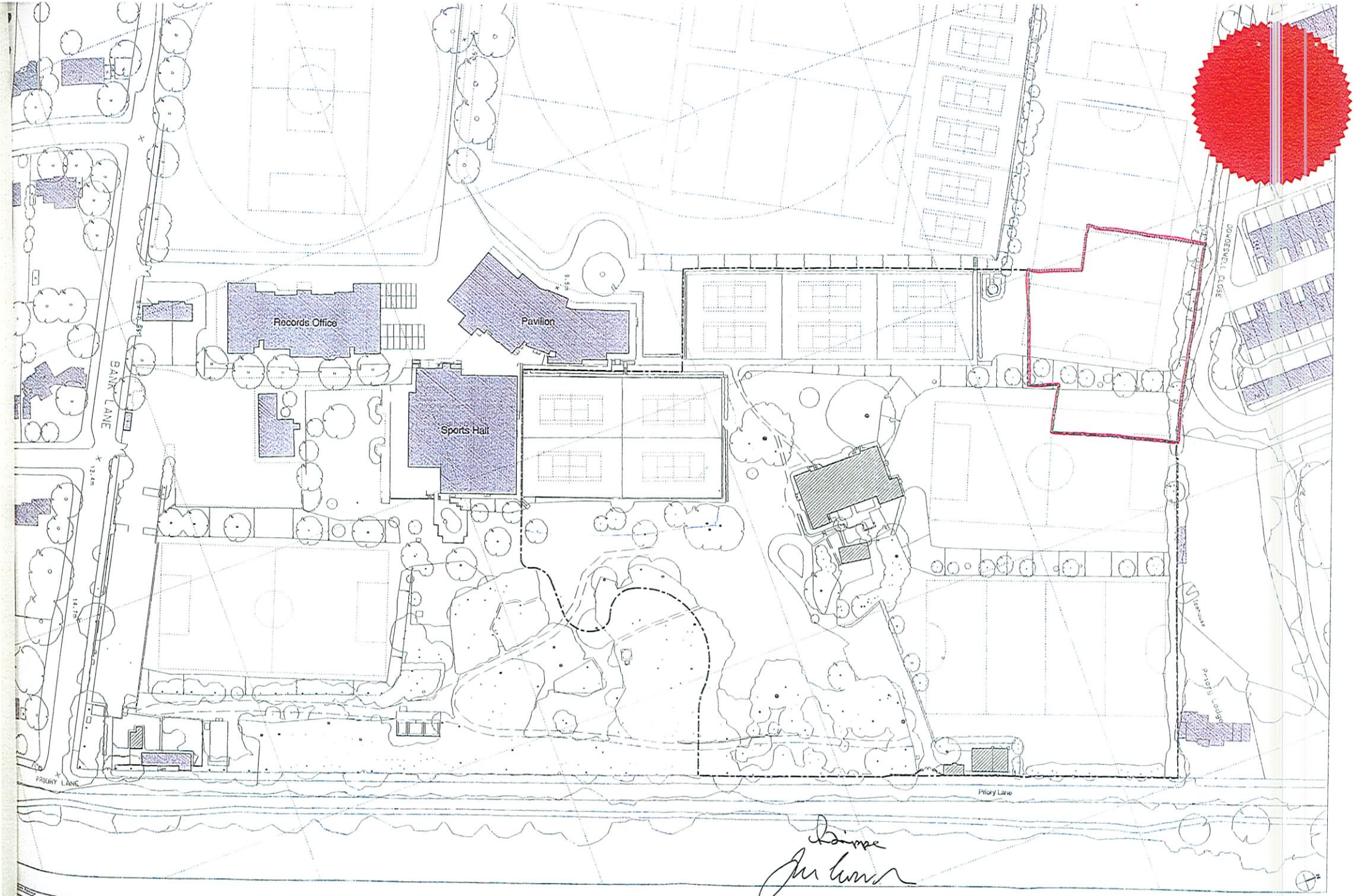


Project The Lawn Tennis Association

PLAN 3



Entrance Level Plan


Records Office
Pavilion
Sports Hall
BANK LANE
PRIORY LANE
Priory Lane
DOWDSWELL CLOSE

| | | |

along the accessway shown coloured orange on Plan 1 for the purpose only of emergency access.

5. The right to erect scaffolding on the accessway shown coloured yellow and orange on Plan 1 for the purpose of repairing maintaining renewing or replacing buildings on the Retained Land notwithstanding temporary interference with the right of way specified in paragraph 3 of Schedule 3 and subject to the Landlord keeping such interference to a minimum.

6. The right without obtaining consent from or making compensation to the Tenant to deal as the Landlord thinks fit with the Retained Land and to carry out works thereon or thereto notwithstanding that the enjoyment of the access of light and air to the Premises may be interfered with.

(EXECUTED as a deed by
(LTA NOMINEES LIMITED
(acting by two directors:

Director

Director



(THE COMMON SEAL of
(THE ALL ENGLAND LAWN
(TENNIS GROUND PLC was hereunto
(affixed in the presence of:

Director

Director/Secretary